



POLICE DEPARTMENT

March 29, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206638 (Incident Date: October 2, 2022) regarding Police Officer Dennis Hoe, Tax No. 949106 (DADS No. 2024-29802)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202206638, pertaining to Police Officer Dennis Hoe. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Hoe would be detrimental to the Department's disciplinary process.

In this matter, Officer Hoe and his partner were conducting quality of life enforcement in the transit system when they attempted to place a male individual under arrest. During that encounter, a female individual pushed the male individual several times and walked between the officers and the male individual multiple times. As the confrontation between the officers and the male individual escalated, the female individual came up from behind Officer Hoe's partner, while the officer had his conducted electrical weapon out and trained on the male individual, and touched the officer on the back, on the side of his body where he carried his firearm. After the officers placed the male individual under arrest, Officer Hoe issued the female a Criminal Court summons for disorderly conduct.

CCRB substantiated an allegation against Officer Hoe that he issued an unlawful summons to the female individual. The Police Commissioner disagrees and finds that, although disorderly conduct may have been the wrong violation to charge on the summons, Officer Hoe had probable cause to issue a summons to the female individual for other violations of law, including harassment. Indeed, CCRB determined her actions to have constituted obstruction of governmental administration – a class A misdemeanor under NYS Penal Law §195.05. For these reasons, in addition to Officer Hoe's lack of prior formal disciplinary history, lack of prior substantiated CCRB complaints, and positive work history, the Police Commissioner believes that the issuance of Charges and Specifications in this matter is improper.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the sole allegation that Police Officer Hoe issued a disorderly conduct summons without sufficient legal authority. Separate and apart, the Police Commissioner recognizes that Officer Hoe would benefit from additional training and intends to direct that he receive formalized training in NYS Penal Law §195.05 (Obstruction of Government Administration), §240.20 (Disorderly Conduct), and §240.26 (Harassment).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 1, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Dennis Hoe, Tax No. 949106
Disciplinary Case No.: 2024-29802

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 29, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend to dismiss the Charges and Specifications in this matter. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that CCRB’s issuance of Charges and Specifications in this matter is improper. You intend to retain jurisdiction over this matter and impose no disciplinary action for the sole allegation that Police Officer Hoe issued a disorderly conduct summons without sufficient legal authority. Moreover, you intend to direct that he receive formalized training in NYS Penal Law §195.05 (Obstruction of Government Administration), §240.20 (Disorderly Conduct), and §240.26 (HARASSMENT).

CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If CCRB was to resolve this case today, and PO Hoe was to accept responsibility for the misconduct, CCRB would have moved to dismiss the Charges and Specifications itself and recommended NYPD imposed formalized training.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

April 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

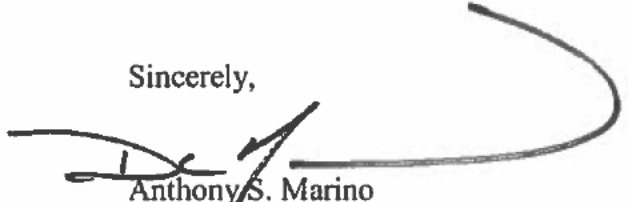
Re: CCRB Case No. 202206638 (Incident Date: October 2, 2022) regarding Police Officer
Dennis Hoe, Tax No. 949106 (DADS No. 2024-29802)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 1, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Dennis Hoe, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Hoe for the reasons expressed in my March 29, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Police Officer Hoe for the sole allegation. Separate and apart, Police Officer Hoe will receive formalized training in NYS Penal Law §195.05 (Obstruction of Government Administration), §240.20 (Disorderly Conduct), and §240.26 (Harassment).

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office